

बिड दस्तावेज़ / Bid Document

बिड विवरण/Bid Details	
बिड बंद होने की तारीख/समय /Bid End Date/Time	14-07-2026 15:00:00
बिड खुलने की तारीख/समय /Bid Opening Date/Time	14-07-2026 15:30:00
बिड पेशकश वैधता (बंद होने की तारीख से)/Bid Offer Validity (From End Date)	90 (Days)
मंत्रालय/राज्य का नाम/Ministry/State Name	Ministry Of Petroleum And Natural Gas
विभाग का नाम/Department Name	Na
संगठन का नाम/Organisation Name	Oil And Natural Gas Corporation Limited
कार्यालय का नाम/Office Name	Ahmedabad Asset
शिकायत निवारण के संपर्क विवरण/ Contact details of Grievance redressal	HOD Email id : Buyer Email id: aggarwal_akansha@ongc.co.in
कुल मात्रा/Total Quantity	6860
वस्तु श्रेणी /Item Category	4 X 6 MM2, 1.1 K. V Grade, POWER cable as per the IS: 9968 (Part-1) , 4 X 50 MM2, 1.1 K. V Grade, POWER cable as per the IS: 9968 (Part-1) , 4 X 16 MM2, 1.1 K. V Grade, POWER cable as per the IS: 9968 (Part-1) , 4 X 2.5 MM2, 1.1 K. V Grade, POWER cable as per the IS: 9968 (Part-1) , 4 X 1.5 MM2, 1.1 K. V Grade, POWER cable as per the IS: 9968 (Part-1) , 4 X 4 MM2, 1.1 K. V Grade, POWER cable as per the IS: 9968 (Part-1) , 10 X 1.5 MM2, 1.1 K. V Grade, POWER cable as per the IS: 9968 (Part-1) , 7 X 2.5 MM2, 1.1 K. V Grade, POWER cable as per the IS: 9968 (Part-1) , 3 X 4 MM2, 1.1 K. V Grade, Flexible Copper Conductor, EPR Insulated type IE2, overall ATC screened, C , 5 X 25 MM2, 1.1 K. V Grade, POWER cable as per the IS: 9968 (Part-1)
GeMARPTS में खोजी गई स्ट्रिंग्स / Searched Strings used in GeMARPTS	5 X 25 MM2, 1.1 K.V Grade, Flexible Copper Conductor, EPR Insulated type IE2, overall ATC screened, CSP outer sheathed Type SE 4, POWER cable as per the IS: 9968 (Part-1)
GeMARPTS में खोजा गया परिणाम / Searched Result generated in GeMARPTS	Category not available on GeM for the text string uploaded by the buyer
अधिसूचना के लिए चयनित प्रासंगिक श्रेणियाँ / Relevant Categories selected for notification	- Elastomer Insulated, Elastomer Sheathed Cables - Elastomer Insulated, Textile Braided Cables Marked To IS 9968 (Part 1)
एमएसएमई के लिए अनुभव के वर्षों और टर्नओवर से छूट प्रदान की गई है/MSE Relaxation for Years of Experience and Turnover	No

बिड विवरण/Bid Details	
स्टार्टअप के लिए अनुभव के वर्षों और टर्नओवर से छूट प्रदान की गई है /Startup Relaxation for Years of Experience and Turnover	No
विक्रेता से मांगे गए दस्तावेज़/Document required from seller	Certificate (Requested in ATC),OEM Authorization Certificate,Additional Doc 1 (Requested in ATC),Additional Doc 2 (Requested in ATC),Additional Doc 3 (Requested in ATC),Additional Doc 4 (Requested in ATC) *In case any bidder is seeking exemption from Experience / Turnover Criteria, the supporting documents to prove his eligibility for exemption must be uploaded for evaluation by the buyer
क्या आप निविदाकारों द्वारा अपलोड किए गए दस्तावेज़ों को निविदा में भाग लेने वाले सभी निविदाकारों को दिखाना चाहते हैं? संदर्भ में नू है/Do you want to show documents uploaded by bidders to all bidders participated in bid?	No
बिड लगाने की समय सीमा स्वतः नहीं बढ़ाने के लिए आवश्यक बिड की संख्या। / Minimum number of bids required to disable automatic bid extension	3
दिनों की संख्या, जिनके लिए बिड लगाने की समय-सीमा बढ़ाई जाएगी। / Number of days for which Bid would be auto-extended	7
ऑटो एक्सटेंशन अधिकतम कितनी बार किया जाना है। / Number of Auto Extension count	1
बिड से रिवर्स नीलामी सक्रिय किया/Bid to RA enabled	No
बिड का प्रकार/Type of Bid	Two Packet Bid
प्राथमिक उत्पाद श्रेणी/Primary product category	4 X 6 MM2, 1.1 K. V Grade, POWER cable as per the IS: 9968 (Part-1)
तकनीकी मूल्यांकन के दौरान तकनीकी स्पष्टीकरण हेतु अनुमत समय /Time allowed for Technical Clarifications during technical evaluation	4 Days
निरीक्षण आवश्यक (सूचीबद्ध निरीक्षण प्राधिकरण /जेम के साथ पूर्व पंजीकृत एजेंसियों द्वारा)/Inspection Required (By Empanelled Inspection Authority / Agencies pre-registered with GeM)	Yes
Inspection to be carried out by Buyers own empanelled agency	Yes
Type Of Inspection	Pre Dispatch
Name of the Empanelled Inspection Agency/ Authority	CONCERNED ONGC QUALITY ASSURANCE DEPARTMENT
Payment Timelines	Payments shall be made to the Seller within 10 days of issue of consignee receipt-cum-acceptance certificate (CRAC) and on-line submission of bills (This is in supersession of 10 days time as provided in clause 12 of GeM GTC)

बिड विवरण/Bid Details	
मूल्यांकन पद्धति/Evaluation Method	Item wise evaluation
मध्यस्थता खंड/Arbitration Clause	Yes (Arbitration clause document) as per DoE OM No.F.1/2/2024-PPD dated 03.06.2024 Arbitration should not be routinely included in contracts
सुलह खंड/Mediation Clause	Yes (Mediation clause document) as per DoE OM No.F.1/2/2024-PPD dated 03.06.2024 mediation clause should not be routinely included in contracts and pre-litigation mediation can be taken up without any such clause also

ईएमडी विवरण/EMD Detail

एडवाइजरी बैंक/Advisory Bank	State Bank of India
Schedule 1 ईएमडी राशि/EMD Amount (In INR)	14000
Schedule 2 ईएमडी राशि/EMD Amount (In INR)	15000
Schedule 3 ईएमडी राशि/EMD Amount (In INR)	37000
Schedule 4 ईएमडी राशि/EMD Amount (In INR)	10000
Schedule 5 ईएमडी राशि/EMD Amount (In INR)	9000
Schedule 6 ईएमडी राशि/EMD Amount (In INR)	7000
Schedule 7 ईएमडी राशि/EMD Amount (In INR)	16000
Schedule 8 ईएमडी राशि/EMD Amount (In INR)	1000
Schedule 9 ईएमडी राशि/EMD Amount (In INR)	2000
Schedule 10 ईएमडी राशि/EMD Amount (In INR)	10000

ईपीबीजी विवरण /ePBG Detail

एडवाइजरी बैंक/Advisory Bank	State Bank of India
ईपीबीजी प्रतिशत (%) /ePBG Percentage(%)	3.00
ईपीबीजी की आवश्यक अवधि (माह) /Duration of ePBG required (Months).	17

(a). जेम की शर्तों के अनुसार ईएमडी छूट के इच्छुक बिडर को संबंधित कैटेगरी के लिए बिड के साथ वैध समर्थित दस्तावेज प्रस्तुत करने हैं। एमएसई कैटेगरी के अंतर्गत केवल वस्तुओं के लिए विनिर्माता तथा सेवाओं के लिए सेवा प्रदाता ईएमडी से छूट के पात्र हैं। व्यापारियों को इस नीति के दायरे से बाहर रखा गया है।/EMD EXEMPTION: The bidder seeking EMD exemption, must submit the valid supporting document for the relevant category as per GeM GTC with the bid. Under MSE category, only manufacturers for goods and Service Providers for Services are eligible for exemption from EMD. Traders are excluded from the purview of this Policy.

(b). The EMD Amount will be applicable for each schedule/group selected during Bid creation.

(c). ईएमडी और संपादन जमानत राशि, जहां यह लागू होती है, लाभार्थी के पक्ष में होनी चाहिए। / EMD & Performance security should be in favour of Beneficiary, wherever it is applicable.

(d). ईएमडी और संपादन जमानत राशि लाभार्थी के पक्ष में होनी चाहिए। / Earnest Money Deposit (EMD) shall also be accepted by the buyer in the form of a surety bond.

लाभार्थी /Beneficiary :

.....

As per para 3.1 & 3.2 of buyer added ATC
(.....)

बोली विभाजन लागू नहीं किया गया/ Bid splitting not applied.

एमआईआई खरीद वरीयता/MII Purchase Preference

एमआईआई खरीद वरीयता/MII Purchase Preference	No
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एमआईआई के लिए सक्षम प्राधिकारी का विवरण:/Details of the Competent Authority for MII

सक्षम प्राधिकारी का नाम/Name of Competent Authority	MoPNG
सक्षम प्राधिकारी का पदनाम/Designation of Competent Authority	NA
सक्षम प्राधिकारी का कार्यालय/विभाग/प्रभाग/Office / Department / Division of Competent Authority	NA
सीए अनुमोदन संख्या/CA Approval Number	NA
सक्षम प्राधिकारी अनुमोदन तिथि/Competent Authority Approval Date	18-06-2026
सक्षम प्राधिकारी द्वारा प्रदान की गई स्वीकृति का संक्षिप्त विवरण/Brief Description of the Approval Granted by Competent Authority	Purchase Preference to MII is not applicable since case value is less than INR 1 crore as per PMC circular no. 52/2024 dated 18.11.2024.

Competent Authority Approval for not opting Make In India Preference : [View Document](#)

एमएसई खरीद वरीयता/MSE Purchase Preference

एमएसई खरीद वरीयता/MSE Purchase Preference	Yes
सूक्ष्म और लघु उद्यम मूल उपकरण निर्माताओं/सेवा प्रदाता को खरीद में प्राथमिकता, यदि उनका मूल्य $L1+X\%$ / Purchase Preference to MSE OEMs/ Service Provider available upto price within $L1+X\%$	15
सूक्ष्म और लघु उद्यम मूल उपकरण निर्माता/सेवा प्रदाता को खरीद में प्राथमिकता के लिए बिड की मात्रा का अधिकतम प्रतिशत / Percentage of Bid quantity/amount for MSE OEMs/ Service Provider Purchase preference	100

ट्रेड्स भुगतान संबंधी विवरण/TReDS Payment Details

This Bid provides for Trade Receivables Discounting System (TReDS) as Preferred mode of payment. For MSME sellers, payments may be processed through a TReDS exchange in which the Buyer is registered, subject to applicable policy and regulatory guidelines. Accordingly, sellers intending to avail payment through TReDS are required to be registered with at least one TReDS exchange in which the buyer is registered.

- 1. Purchase preference to Micro and Small Enterprises (MSEs):** Purchase preference will be given to MSEs having valid Udyam Certificate and whose credentials are validated online through Udyam Registration portal as defined in Public Procurement Policy for Micro and Small Enterprises (MSEs) Order, 2012 dated 23.03.2012 issued by Ministry of Micro, Small and Medium Enterprises and its subsequent Orders/Notifications issued by concerned Ministry. If the bidder wants to avail themselves of the Purchase preference, the bidder must be the manufacturer / OEM of the offered product on GeM. In respect of bid for Services, the bidder must be the Service provider of the offered Service. Traders are excluded from the purview of Public Procurement Policy for Micro and Small Enterprises and hence resellers offering products manufactured by some other OEM are not eligible for any purchase preference. Relevant documentary evidence in this regard shall be uploaded along with the bid in respect of the offered product or service, and Buyer will decide eligibility for purchase preference based on documentary evidence submitted in case of product bids, whereas in case of services the eligibility is automatically validated. If L-1 is not an MSE and MSE Seller (s) has / have quoted price within L-1+ 15% (Selected by Buyer) of margin of purchase preference /price band defined in relevant policy, such MSE Seller shall be given opportunity to match L-1 price and contract will be awarded for 100% (selected by Buyer) percentage of total quantity. The buyers are advised to refer the [OM No.1 4 2021 PPD dated 18.05.2023](#) for compliance of Concurrent application of Public Procurement Policy for Micro and Small Enterprises Order, 2012 and Public Procurement (Preference to Make in India) Order, 2017. Benefits of MSE will be allowed only if seller is validated on-line in GeM profile as well as validated and approved by Buyer after evaluation of documents submitted.
- 2. Estimated Bid Value indicated above is being declared solely for the purpose of guidance on EMD amount and for determining the Eligibility Criteria related to Turn Over, Past Performance and Project / Past Experience etc.** This has no relevance or bearing on the price to be quoted by the bidders and is also not going to have any impact on bid participation. Also this is not going to be used as a criteria in determining reasonableness of quoted prices which would be determined by the buyer based on its own assessment of reasonableness and based on competitive prices received in Bid / RA process.
- 3. Inspection of Stores by Nominated Inspection Authority / Agency of buyer or their authorized representatives**

An independent third party Professional Inspection Body can help buyer in mitigating buyer's risk with pre-dispatch/post-dispatch inspection in order to ensure that equipment, components, solutions and documentation conform to contractual requirements. The buyer has a right to inspect goods in reasonable manner and within reasonable time at any reasonable place as indicated in contract. Inspection Fee/ Charges (as pre-greed between buyer and Inspection Agency) would be borne by the buyer as per their internal arrangement but may be recovered from the seller if the consignment failed to conform to contractual specification and got rejected by the Inspection Officer. If so requested and accepted by the seller, initially seller may pay for inspection charges as applicable and get the same reimbursed from buyer if consignment accepted by the Inspecting Officer. For reimbursement seller has to submit proof of payment to Inspection Agency.

Seller/OEM shall send a notice in writing / e-mail to the Inspecting officer / inspection agency specifying the place of inspection as per contract and the Inspecting officer shall on receipt of such notice notify to the seller the date and time when the stores would be inspected. The seller shall, at his own expenses, afford to the Inspecting officer, all reasonable facilities as may be necessary for satisfying himself that the stores are being and or have been manufactured in accordance with the technical particulars governing the supply. The decision of the purchaser representative /inspection authority regarding acceptance / rejection of consignment shall be final and binding on the seller.

The Seller shall provide, without any extra charge, all materials, tools, labour and assistance of every kind which the Inspecting officer may demand of him for any test, and examination, other than special or independent test, which he shall require to be made on the seller's premises and the seller shall bear and pay all costs attendant thereon.

The seller shall also provide and deliver store / sample from consignment under inspection free of charge at any such place other than his premises as the Inspecting officer may specify for acceptance tests for which seller/OEM does not have the facilities or for special/ independent tests.

In the event of rejection of stores or any part thereof by the Inspecting officer basis testing outside owing to lack of test facility at sellers premises, the seller shall, on demand, pay to the buyer the costs incurred in the

inspection and/or test. Cost of test shall be assessed at the rate charged by the Laboratory to private persons for similar work.

Inspector shall have the right to put all the stores or materials forming part of the same or any part thereof to such tests as he may like fit and proper as per QAP/governing specification. The seller shall not be entitled to object on any ground whatsoever to the method of testing adopted by the Inspecting officer.

Unless otherwise provided for in the contract, the quantity of the stores or materials expended in test will be borne by seller.

Inspecting officer is the Final Authority to Certify Performance / accept the consignment. The Inspecting officer's decision as regards the rejection shall be final and binding on the seller.

The seller shall if so required at his own expense shall mark or permit the Inspecting officer to mark all the approved stores with a recognised Government or purchaser's mark.

मूल्यांकन विधि(मदवार मूल्यांकन विधि) / **Evaluation Method** (Item Wise Evaluation Method)

Contract will be awarded schedule wise and the determination of L1 will be done separately for each schedule. The details of item-consignee combination covered under each schedule are as under:

मूल्यांकन अनुसूचियां / Evaluation Schedules	वस्तु/श्रेणी / Item/Category	मात्रा / Quantity
Schedule 1	4 X 6 Mm2, 1.1 K. V Grade, Power Cable As Per The Is: 9968 (part-1)	900
Schedule 2	4 X 50 Mm2, 1.1 K. V Grade, Power Cable As Per The Is: 9968 (part-1)	160
Schedule 3	4 X 16 Mm2, 1.1 K. V Grade, Power Cable As Per The Is: 9968 (part-1)	1050
Schedule 4	4 X 2.5 Mm2, 1.1 K. V Grade, Power Cable As Per The Is: 9968 (part-1)	1180
Schedule 5	4 X 1.5 Mm2, 1.1 K. V Grade, Power Cable As Per The Is: 9968 (part-1)	1400
Schedule 6	4 X 4 Mm2, 1.1 K. V Grade, Power Cable As Per The Is: 9968 (part-1)	560
Schedule 7	10 X 1.5 Mm2, 1.1 K. V Grade, Power Cable As Per The Is: 9968 (part-1)	1200
Schedule 8	7 X 2.5 Mm2, 1.1 K. V Grade, Power Cable As Per The Is: 9968 (part-1)	50
Schedule 9	3 X 4 Mm2, 1.1 K. V Grade, Flexible Copper Conductor, Epr Insulated Type Ie2, Overall Atc Screened, C	200
Schedule 10	5 X 25 Mm2, 1.1 K. V Grade, Power Cable As Per The Is: 9968 (part-1)	160

4 X 6 MM2, 1.1 K. V Grade, POWER Cable As Per The IS: 9968 (Part-1) (900 meter)

तकनीकी विशिष्टियाँ /**Technical Specifications**

क्रेता विशिष्टि दस्तावेज़ /Buyer Specification Document	Download
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परेषिती/रिपोर्टिंग अधिकारी तथा मात्रा/Consignees/Reporting Officer and Quantity

क्र.सं./S.No.	परेषिती/रिपोर्टिंग अधिकारी /Consignee Reporting/Officer	पता/Address	मात्रा /Quantity	डिलीवरी के दिन/Delivery Days
1	Chauhan Vishalkumar Narsinhbhai	382721,I/c Receipt Kalol, ONGC, Kalol Stores, Kalol,	900	90

4 X 50 MM2, 1.1 K. V Grade, POWER Cable As Per The IS: 9968 (Part-1) (160 meter)

तकनीकी विशिष्टियाँ /Technical Specifications

क्रेता विशिष्टि दस्तावेज़ /Buyer Specification Document	Download
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परेषिती/रिपोर्टिंग अधिकारी तथा मात्रा/Consignees/Reporting Officer and Quantity

क्र.सं./S.No.	परेषिती/रिपोर्टिंग अधिकारी /Consignee Reporting/Officer	पता/Address	मात्रा /Quantity	डिलीवरी के दिन/Delivery Days
1	Chauhan Vishalkumar Narsinhbhai	382721,I/c Receipt Kalol, ONGC, Kalol Stores, Kalol,	160	90

4 X 16 MM2, 1.1 K. V Grade, POWER Cable As Per The IS: 9968 (Part-1) (1050 meter)

तकनीकी विशिष्टियाँ /Technical Specifications

क्रेता विशिष्टि दस्तावेज़ /Buyer Specification Document	Download
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परेषिती/रिपोर्टिंग अधिकारी तथा मात्रा/Consignees/Reporting Officer and Quantity

क्र.सं./S.No.	परेषिती/रिपोर्टिंग अधिकारी /Consignee Reporting/Officer	पता/Address	मात्रा /Quantity	डिलीवरी के दिन/Delivery Days
1	Chauhan Vishalkumar Narsinhbhai	382721,I/c Receipt Kalol, ONGC, Kalol Stores, Kalol,	1050	90

4 X 2.5 MM2, 1.1 K. V Grade, POWER Cable As Per The IS: 9968 (Part-1) (1180 meter)**तकनीकी विशिष्टियाँ /Technical Specifications**

क्रेता विशिष्टि दस्तावेज़ /Buyer Specification Document	Download
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प्रेषिती/रिपोर्टिंग अधिकारी तथा मात्रा/Consignees/Reporting Officer and Quantity

क्र.सं./S.N o.	प्रेषिती/रिपोर्टिंग अधिकारी /Consignee Reporting/Officer	पता/Address	मात्रा /Quantity	डिलीवरी के दिन/Delivery Days
1	Chauhan Vishalkumar Narsinhbhai	382721,I/c Receipt Kalol, ONGC, Kalol Stores, Kalol,	1180	90

4 X 1.5 MM2, 1.1 K. V Grade, POWER Cable As Per The IS: 9968 (Part-1) (1400 meter)**तकनीकी विशिष्टियाँ /Technical Specifications**

क्रेता विशिष्टि दस्तावेज़ /Buyer Specification Document	Download
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प्रेषिती/रिपोर्टिंग अधिकारी तथा मात्रा/Consignees/Reporting Officer and Quantity

क्र.सं./S.N o.	प्रेषिती/रिपोर्टिंग अधिकारी /Consignee Reporting/Officer	पता/Address	मात्रा /Quantity	डिलीवरी के दिन/Delivery Days
1	Chauhan Vishalkumar Narsinhbhai	382721,I/c Receipt Kalol, ONGC, Kalol Stores, Kalol,	1400	90

4 X 4 MM2, 1.1 K. V Grade, POWER Cable As Per The IS: 9968 (Part-1) (560 meter)**तकनीकी विशिष्टियाँ /Technical Specifications**

क्रेता विशिष्टि दस्तावेज़ /Buyer Specification Document	Download
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प्रेषिती/रिपोर्टिंग अधिकारी तथा मात्रा/Consignees/Reporting Officer and Quantity

क्र.सं./S.N o.	परेषिती/रिपोर्टिंग अधिकारी /Consignee Reporting/Officer	पता/Address	मात्रा /Quantity	डिलीवरी के दिन/Delivery Days
1	Chauhan Vishalkumar Narsinhbhai	382721,I/c Receipt Kalol, ONGC, Kalol Stores, Kalol,	560	90

10 X 1.5 MM2, 1.1 K. V Grade, POWER Cable As Per The IS: 9968 (Part-1) (1200 meter)

तकनीकी विशिष्टियाँ /Technical Specifications

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परेषिती/रिपोर्टिंग अधिकारी तथा मात्रा/Consignees/Reporting Officer and Quantity

क्र.सं./S.N o.	परेषिती/रिपोर्टिंग अधिकारी /Consignee Reporting/Officer	पता/Address	मात्रा /Quantity	डिलीवरी के दिन/Delivery Days
1	Chauhan Vishalkumar Narsinhbhai	382721,I/c Receipt Kalol, ONGC, Kalol Stores, Kalol,	1200	90

7 X 2.5 MM2, 1.1 K. V Grade, POWER Cable As Per The IS: 9968 (Part-1) (50 meter)

तकनीकी विशिष्टियाँ /Technical Specifications

क्रेता विशिष्टि दस्तावेज़ /Buyer Specification Document	Download
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परेषिती/रिपोर्टिंग अधिकारी तथा मात्रा/Consignees/Reporting Officer and Quantity

क्र.सं./S.N o.	परेषिती/रिपोर्टिंग अधिकारी /Consignee Reporting/Officer	पता/Address	मात्रा /Quantity	डिलीवरी के दिन/Delivery Days
1	Chauhan Vishalkumar Narsinhbhai	382721,I/c Receipt Kalol, ONGC, Kalol Stores, Kalol,	50	90

3 X 4 MM2, 1.1 K. V Grade, Flexible Copper Conductor, EPR Insulated Type IE2, Overall ATC Screened, C (200 meter)

तकनीकी विशिष्टियाँ /Technical Specifications

क्रेता विशिष्टि दस्तावेज़ /Buyer Specification Document	Download
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परेषिती/रिपोर्टिंग अधिकारी तथा मात्रा/Consignees/Reporting Officer and Quantity

क्र.सं./S.N o.	परेषिती/रिपोर्टिंग अधिकारी /Consignee Reporting/Officer	पता/Address	मात्रा /Quantity	डिलीवरी के दिन/Delivery Days
1	Chauhan Vishalkumar Narsinhbhai	382721,I/c Receipt Kalol, ONGC, Kalol Stores, Kalol,	200	90

5 X 25 MM2, 1.1 K. V Grade, POWER Cable As Per The IS: 9968 (Part-1) (160 meter)**तकनीकी विशिष्टियाँ /Technical Specifications**

क्रेता विशिष्टि दस्तावेज़ /Buyer Specification Document	Download
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परेषिती/रिपोर्टिंग अधिकारी तथा मात्रा/Consignees/Reporting Officer and Quantity

क्र.सं./S.N o.	परेषिती/रिपोर्टिंग अधिकारी /Consignee Reporting/Officer	पता/Address	मात्रा /Quantity	डिलीवरी के दिन/Delivery Days
1	Chauhan Vishalkumar Narsinhbhai	382721,I/c Receipt Kalol, ONGC, Kalol Stores, Kalol,	160	90

क्रेता द्वारा जोड़ी गई बिड की विशेष शर्तें/Buyer Added Bid Specific Terms and Conditions**1. Generic**

OPTION CLAUSE: The Purchaser reserves the right to increase or decrease the quantity to be ordered up to 25 percent of bid quantity at the time of placement of contract. The purchaser also reserves the right to increase the ordered quantity up to 25% of the contracted quantity during the currency of the contract at the contracted rates. The delivery period of quantity shall commence from the last date of original delivery order and in cases where option clause is exercised during the extended delivery period the additional time shall commence from the last date of extended delivery period. The additional delivery time shall be $(\text{Increased quantity} \div \text{Original quantity}) \times \text{Original delivery period (in days)}$, subject to minimum of 30 days. If the original delivery period is less than 30 days, the additional time equals the original delivery period. The Purchaser may extend this calculated delivery duration up to the original

delivery period while exercising the option clause. Bidders must comply with these terms.

2. Buyer Added Bid Specific ATC

Buyer Added text based ATC clauses

2. BID EVALUATION CRITERIA

BEC Clause No.	BID EVALUATION CRITERIA (BEC)
A	VITAL CRITERIA FOR ACCEPTANCE OF BIDS: - Bidders are advised not to take any exception/deviations to the bid document. Exceptions/ deviations, if any, should be brought out during the Pre-bid conference. In case Pre-bid conference is not held, the exceptions/ deviations along with suggested changes are to be communicated to ONGC within the date specified in the NIT and bid document. ONGC after processing such suggestions may, through an addendum to the bid document, communicate to the bidders the changes in its bid document, if any. However, during evaluation of bids, ONGC may ask the Bidder for Clarifications/ confirmations/deficient documents of its bid. The request for clarification and the response shall be in writing and no change in the price or substance of the bid shall be sought or permitted. If the bidder still maintains exceptions/deviations in the bid, such conditional/ non-conforming bids shall not be considered and may be rejected.
B.1	Technical rejection criteria: The following vital technical conditions should be strictly complied with, failing which the bid will be rejected:
B.1.1	Bid should be complete in all aspects covering entire scope of job/ supply and should conform to the technical specifications indicated in the bid document, duly supported with technical catalogues/ literatures, wherever applicable. Incomplete and non-conforming bids will be rejected outright.

B.1.2

Manufacturer's experience:-

In case the bidder is a manufacturer of the offered item, he should satisfy the following along with documentary evidence, which should be enclosed along with the techno-commercial bid:

(a) Minimum 3 years of experience of manufacturing (similar items)*.

AND

(b) Should have manufactured and supplied minimum of 200 meters of (similar items)* to **hydrocarbon industries** during the last 4 years (either through single order or Multiple orders).

For meeting the requirement above at (a) & (b), the period reckoned shall be the period prior to the originally scheduled date of opening of the techno-commercial bid.

Documentary evidence in respect of the above should be submitted in the form of copies of relevant Purchase Orders along with copies of any of the documents in respect of satisfactory execution of each of those Purchase Orders, such as - (i) Satisfactory Inspection report (OR) (ii) Satisfactory supply completion / Installation report (OR) (iii) Consignee Receipted Delivery Challans (OR) (iv) Central Excise Gate Pass / Tax Invoices issued under relevant rules of Central Excise / VAT/GST (OR) (v) any other documentary evidence that can substantiate the satisfactory execution of each of the purchase orders cited above.

***Similar equipment / items means 1.1 KV or higher Voltage EPR Cables.**

B.1.2.1	In case the bidder is not a manufacturer, then the bidder is required to submit documentary evidence in respect of the above B.1.2(a) and B.1.2(b) of the concerned manufacturer (having supplied such items either by manufacturer himself or his distributor), along with the techno-commercial bid.
B.1.2.2	Bidders, who have successfully executed development order for <u>1.1 KV or higher Voltage EPR Cables</u> placed by ONGC/OIL pursuant to successful field trial testing would be considered as established source of supply and in that case, documents for satisfying BE C Clause B.1.2(a) and B.1.2(b) are not required to be submitted. However, such bidders shall submit the certificate towards satisfactory execution of development order pursuant to successful field trial testing along with the techno-commercial bid. For Development Order issued by ONGC after 02.12.2020, such certificate should have been issued by Head INDEG only.

B.1.2.3	In case Start-up bidder has successfully executed Purchase Order placed by ONGC/OIL/IOCL/HPCL/BPCL/GAIL for <u>1.1 KV or higher Voltage EPR Cables</u> and the material supplied has been used in field satisfactorily, then such Start-up bidders will be considered meeting experience criteria as per BEC Clause B.1.2(a) and B.1.2(b). In this regard, bidder shall submit copy of purchase order/contract alongwith supporting document towards having used the material satisfactorily in the fields. If bidder is a Start-up (Definition of "Startup" shall be as per Gazette Notification G.S.R. 127(E) dated 19.02.2019 (as amended) of Govt of India) and willing to avail the relaxations as stipulated in tender document, then they should submit the following documents: (i) Registration Certificate issued by Department for Promotion of Industry and Internal Trade (DPIIT), earlier known as Department of Industrial Policy and Promotion (DIPP), Ministry of Commerce, certified by Start-up Director/Partner. (ii) A declaration from the Directors/Partner of the start-up stating that bid is submitted by Start-up as Manufacturer of the quoted item (in case of procurement of Goods)/ Provider of quoted services (in case of procurement of services) and not as a trader/dealer/distributor.
3	Bidders should have the required facilities for testing the quoted material as per International standards at their premises and also agree to inspection by ONGC or any other agency nominated by ONGC. In case the bidder is not the manufacturer, a certificate from the manufacturer to the effect that the manufacturer possesses the required facilities for testing the quoted equipment/ material should be enclosed along with the techno-commercial bid.
4.	Delivery schedule – Within 03 months from award of contract and Part payment and Part delivery in Maximum 02 lots is allowed
5.	Warranty shall be as per GeM GTC.

3. Commercial Clauses:

3.1. EMD SUBMISSION:

A.	Following modes for submission of EMD are acceptable : a. NEFT/RTGS/Electronic fund transfer to the designated account of ONGC; b. E-BG; c. SFMS based BG (only in case when issuing bank is unable to issue NeSL based e-BG) d. Unconditional Irrevocable Insurance Surety Bond (as per prescribed proforma attached at Annexure-A) from an Insurer registered with Insurance Regulatory and Development Authority of India (IRDAI}, valid for 30 days beyond the required validity of bid Bank Draft/ Cashier's cheque/ Banker's Cheque/ non-SFMS based physical BG are NOT considered as acceptable mode for EMD/ Bid Security / Security Deposit (SD).
B.	For On-line Payment: Bidders can submit EMD in the form of NEFT/RTGS/Electronic fund transfer. Details for On-line payment are as under: Beneficiary Name: Oil and Natural Gas Corporation Limited Bank Name: State Bank of India Branch Name & address: ONGC Chandkheda IRS Branch, Ahmedabad - 380005 IFSC Code: SBIN0005743 Account No.: 00000010257776699. Bidder to indicate bid number and name of bidding entity in the transaction details field at the time of online transfer. Bidder has to upload proof of the Online Payment Transfer along with the bid.

C.

For E-BG:

For issuance of Electronic Bank Guarantee through National E-Governance Services Limited (NeSL) platform, details of ONGC (Beneficiary) are as under:

PAN: AAACO1598A

Name: Oil and Natural Gas Corporation Limited

Date of Incorporation: 23.06.1993

Email ID: ebg@ongc.co.in

Contact No.: 0120-6034040, 0120-4487711

Mobile no.: 7428133002

Legal Constitution: Entity

Registered office address: Plot No. 5A-5B, Nelson Mandela Marg, Vasant Kunj, New Delhi-70

Registered office address Pin code: 110070

Communication address: ONGC, Shared Service Center, 1st Floor, IBM office, Sector 62, Noida-201309, Uttar Pradesh

Communication Address Pin code: 201309

May note the following Beneficiary Account details for e-BG only:

Beneficiary Account Name	Oil and Natural Gas Corporation Limited
Bank Name	State bank of India
Branch	CAG Delhi,
Branch Code	17313
Bank Account No	42559953079
IFSC Code	SBIN0017313

SWIFT Code	SBININBB824
Account Type	CC

Bidder shall submit e-BG in pdf format along with the bid in the GeM portal.

D

For SFMS Based BG:

The default/preferable mode of submission of EMD/Bid Security will be NEFT/RTGS/Electronic fund transfer or e-BG.

Bidder can also submit SFMS based Bank Guarantee (BG) against EMD / Bid Security subject to the following:

a) Whenever a bidder submits SFMS based BG, the bidder will mandatorily be required to submit a letter from the issuing bank that it is unable to issue NeSL based e-BG as on date. Such letter should accompany the SFMS based BG.

b) Bidder shall get SFMS Bank Guarantee issued from SFMS enabled Bank. Bank shall issue the Bank Guarantee through SFMS system (**Account details as mentioned below at S No. 'e' to be used for this purpose**) and send SFMS message to ONGC's Bank (**Virtual IFS C Code "SBIN000ONGC" of SBI, exclusively created for SFMS message purpose, to be used**) confirming the authenticity of Bank Guarantee. Bidder will be required to submit SFMS BG towards Bid Security along with SFMS delivery report /message copy which has been transmitted **by BG issuing bank through SFMS system to ONGC's bank (at aforesaid virtual IFS C Code). The SFMS issuance message (MT 760COV) and subsequent amendments (MT 767COV) must be capable of system verification through API integration.**

c) The SFMS bank guarantee will have to be given on non-judicial stamp paper of Rs 300 / with franking receipt e-stamping of Rs 300 as per stamp duty applicable at

the place from where the bid has emanated. The non-judicial stamp paper / franking receipt e-stamping should be either in the name of the issuing bank or the bidder.

d) The original SFMS BG in physical form towards Bid Security (along with SFMS delivery report /message copy of which has been transmitted by issuing bank through SFMS system to beneficiary's i.e. ONGC's bank) should reach to the designated ONGC office within 5 working days of bid opening. Bidder shall also submit soft copy of the BG (along with SFMS delivery report /message copy which has been transmitted by issuing bank through SFMS system to beneficiary's i.e. ONGC's bank) along with the bid in the GeM portal.

e) SFMS BG will not be acceptable unless details of the same is transmitted to the ONGC's Bank (**to IFSC Code "SBIN000ONGC"**) through SFMS platform. It's bidder's responsibility to ensure that BG issuing bank sends the BG advice correctly in the form of message format 760COV via SFMS (Structured Financial Messaging System) as provided by RBI while capturing all requisite fields including Beneficiary Account Name, Bank Name, Bank Account Number, IFSC Code etc.

Beneficiary Name: Oil and Natural Gas Corporation Limited

Bank Name: State Bank of India

Branch Name & address: ONGC Chandkheda IRS Branch, Ahmedabad - 380005

IFSC Code: SBIN0005743

Account No.: 00000010257776699.

E-mail ID: SBI.05743@SBI.CO.IN

f) In case of any error by the applicant (bidder/contractor) or BG issuing bank while capturing the requisite field details/format or non-receipt of confirmation of BG through SFMS 760COV message format, bidder/contractor shall be responsible for the non-acceptance of the same.

g) For any amendment of SFMS BG, message 76

	7COV through SFMS should be used (IFSC Code “SBI N000ONGC”). Address for submission of hardcopy of SFMS based physical BG: Room no. B-19, Dak Section, MM department, ONGC, Ahmedabad Asset, Chandkheda-380005
E.	For Insurance Surety Bond: Bidder can also submit Unconditional Irrevocable Insurance Surety Bond against EMD / Bid Security subject to the following: a. Irrevocable Unconditional Insurance Surety Bond in the prescribed format as per Annexure-A, valid for 30 days beyond the date of validity of offer. The Insurance Surety Bond will have to be given on non-judicial stamp paper of Rs 300 / with franking receipt e-stamping of Rs 300 as per stamp duty applicable at the place where Insurer is issuing the Insurance Surety Bond. The non-judicial stamp paper / franking receipt should be either in the name of the insurance company (insurer) or the bidder. The bidders will give Insurance surety Bond from an Indian Insurance Company (Insurer) registered with Insurance Regulatory and Development Authority of India (IRDAI). b. Bidders will be required to provide the details of unconditional Insurance Surety Bond such as Number, Date, Name of Insurance company (Insurer), Expiry date, Claim period and amount in their bid. The Insurance Surety Bond in pdf format should also be submitted by bidder in the GeM portal. c. The original Insurance Surety Bond, in the prescribed format provided in the tender, in physical form towards Bid Security should reach to the designated ONGC office within 5 working days of bid opening. Address for submission of hardcopy of original Insurance Surety Bond: Room no. B-19, Dak Section, MM department, ONGC, Ahmedabad Asset, Chandkheda-380005

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|----|---|
| F. | <p>EMD exempted bidders to submit a Bid securing declaration (BSD) accepting that if they withdraw or modify their Bids during the period of validity or if they are awarded the contract and they fail to submit performance security, or to sign the contract, before the deadline defined in the tender documents, it shall be considered as a violation of Code on Integrity and they shall be suspended for the time period specified in the BSD from being eligible to submit Bids/Proposals for contracts.</p> |
|----|---|

Bid Securing Declaration :

"We (Name of the bidder) hereby declare and accept that if we withdraw or modify our Bid during the period of validity, or if we are awarded the contract and we fail to sign the contract, or fail to submit the performance security before the deadline defined in the NIT, we will be banned for a period of two years. We understand that no further correspondence in this regard shall be accepted by ONGC"

3.2. SECURITY DEPOSIT SUBMISSION:

A.	Following modes for submission of SD/PS are acceptable: - NEFT/RTGS/Electronic fund transfer to the designated account of ONGC; - E-BG; - SFMS based BG (only in case when issuing bank is unable to issue NeSL based e-BG) - Unconditional irrevocable Insurance Surety Bond from an Indian Insurance Company (Insurer) registered with Insurance Regulatory and Development Authority of India (IRDAI). Note: The default/Preferable mode of submission of Security Deposit will be NEFT/RTGS/Electronic fund transfer or e-BG. However, whenever a bidder submits SFMS BG, the bidder will mandatorily be required to submit letter from issuing bank that it is unable to issue NeSL based e-BG as on date. Such letter should accompany the SFMS BG. Bidder can also submit irrevocable Unconditional Insurance Surety Bond from Insurance Company registered with Insurance Regulatory and Development Authority of India (IRDAI). Bank Draft/ Cashier's cheque/ Banker's Cheque/ non-SFMS based physical BG are NOT considered as acceptable mode for Security Deposit (SD).
A.1	PBG/SD should be submitted within 30 days from the date of GEM contract. In case PBG/SD is not submitted within 30 days from the date of GEM contract, a sum equivalent to 1.5 % (one and half percent) of the amount of Performance Security per month for such delay or part thereof shall be recovered from the first Bill/invoice (& any remaining amount from subsequent invoice) submitted by the supplier/contractor.

B.	For NEFT/RTGS/Electronic fund transfer: Successful Bidder can submit the Performance Security in the form of NEFT/RTGS/Electronic fund transfer. Details for On-line payment are as under: Beneficiary Name: Oil and Natural Gas Corporation Limited Bank Name: State Bank of India Branch Name & address: ONGC Chandkheda IRS Branch, Ahmedabad – 380005 IFSC Code: SBIN0005743 Account No.: 00000010257776699. Successful Bidder to indicate Contract number and name of Seller entity in the transaction details field at the time of on-line transfer. Bidder has to upload proof of the Online Payment Transfer in place of PBG within 30 days of award of contract on GeM.
C.	For E-BG: For issuance of Electronic Bank Guarantee through National E-Governance Services Limited (NeSL) platform, details of ONGC (Beneficiary) are as under: PAN: AAACO1598A Name: Oil and Natural Gas Corporation Limited Date of Incorporation: 23.06.1993 Email ID: ebg@ongc.co.in Contact No.: 0120-6034040, 0120-4487711 Mobile no.: 7428133002 Legal Constitution: Entity Registered office address: Plot No. 5A-5B, Nelson Mandela Marg, Vasant Kunj, New Delhi-70 Registered office address Pin code: 110070 Communication address: ONGC, Shared Service Center, 1st Floor, IBM office, Sector 62, Noida-201309, Uttar Pradesh Communication Address Pin code: 201309

May note the following Beneficiary Account details for e-BG only:

Beneficiary Account Name	Oil and Natural Gas Corporation Limited
Bank Name	State bank of India
Branch	CAG Delhi,
Branch Code	17313
Bank Account No	42559953079
IFSC Code	SBIN0017313
SWIFT Code	SBININBB824
Account Type	CC

D

For SFMS Based BG:

The default/preferable mode of submission of PBG/SD/PS will be NEFT/RTGS/Electronic fund transfer or e-BG.

Bidder can also submit SFMS based Bank Guarantee (BG) against Security deposit subject to the following:

a) Whenever a bidder submits SFMS based BG, the bidder will mandatorily be required to submit a letter from the issuing bank that it is unable to issue NeSL based e-BG as on date. Such letter should accompany the SFMS based BG.

b) Bidder shall get SFMS Bank Guarantee issued from SFMS enabled Bank. Bank shall issue the Bank Guarantee through

SFMS system (**Account details as mentioned below at S No. 'e' to be used for this purpose**) and send SFMS message to ONGC's Bank (**Virtual IFSC Code "SBIN000ONGC" of SBI, exclusively created for SFMS message purpose, to be used**) confirming the authenticity of Bank Guarantee. Bidder will be required to submit SFMS BG towards Bid Security along with SFMS delivery report /message copy which has been transmitted **by BG issuing bank through SFMS system to ONGC's bank (at aforesaid virtual IFSC Code). The SFMS issuance message (MT 760COV) and subsequent amendments (MT 767COV) must be capable of system verification through API integration.**

c) The SFMS bank guarantee will have to be given on non-judicial stamp paper of Rs 300 / with franking receipt e-stamping of Rs 300 as per stamp duty applicable at the place from where the bid has emanated. The non-judicial stamp paper / franking receipt e-stamping should be either in the name of the issuing bank or the bidder.

d) The original BG in physical form towards Security deposit (along with SFMS delivery report /message copy which has been transmitted by issuing bank through SFMS system to beneficiary's i.e. ONGC's bank) should reach to the designated ONGC office within 30 days of award of contract on GeM.

e) SFMS BG will not be acceptable unless details of the same is transmitted to the ONGC's Bank (**to IFSC Code "SBIN000ONGC"**) through SFMS platform. It's bidder's responsibility to ensure that BG issuing bank sends the BG advice correctly in the form of message format 760COV via SFMS (Structured Financial Messaging System) as provided by RBI while capturing all requisite fields including Beneficiary Account Name, Bank Name, Bank Account Number, IFSC Code etc.

Beneficiary Name: Oil and Natural Gas Corporation Limited

Bank Name: State Bank of India

Branch Name & address: ONGC Chandkheda IRS Branch, Ahmedabad - 380005

IFSC Code: SBIN0005743

Account No.: 00000010257776699.

E-mail ID: SBI.05743@SBI.CO.IN

	f) In case of any error by the applicant (bidder/contractor) or BG issuing bank while capturing the requisite field details/format or non-receipt of confirmation of BG through SFMS 760COV message format, bidder/contractor shall be responsible for the non-acceptance of the same. g) For any amendment of SFMS BG, message 767COV through SFMS should be used (IFSC Code “SBIN000ONGC”). Address for submission of hardcopy of SFMS based physical BG: Room no. B-19, Dak Section, MM department, ONGC, Ahmedabad Asset, Chandkheda-380005
E	For Insurance Surety Bond: Bidder can also submit Unconditional Irrevocable Insurance Surety Bond against Security deposit subject to the following: a. Irrevocable Unconditional Insurance Surety Bond in the prescribed format as per Annexure B, with validity as per para A above. The Insurance Surety Bond will have to be given on non-judicial stamp paper of Rs 300 / with franking receipt e-stamping of Rs 300 as per stamp duty applicable at the place where Insurer is issuing the Insurance Surety Bond. The non-judicial stamp paper / franking receipt should be either in the name of the insurance company (insurer) or the bidder. The bidders will give Insurance surety Bond from an Indian Insurance Company (Insurer) registered with Insurance Regulatory and Development Authority of India (IRDAI). b. The original Insurance Surety Bond, in the prescribed form as provided in the tender, in physical form towards Security deposit should reach to the designated ONGC office within 30 days of award of contract on GeM. Address for submission of hardcopy of original Insurance Surety Bond: Room no. B-19, Dak Section, MM department, ONGC, Ahmedabad Asset, Chandkheda-380005

3.3. PAYMENT TERMS:

1	Invoices along with supporting documents can be submitted/ uploaded through VIMS Portal (https://vims.ongc.co.in/), which is the preferred mode of submission of Invoice. Invoice (PDF digitally signed with class II/ III signature) and supporting documents can be uploaded in VIMS Portal by logging-in with the help of Vendor Code.
2	However, in case supplier/contractor is not able to submit/upload the Invoice through VIMS portal as mentioned above, Invoice along with supporting documents can also be submitted/uploaded in the following way:- 1.1 EMAIL channel: Invoice (PDF digitally signed with class II/ III signature) and supporting documents can be submitted by sending these documents to a designated email-id: ap_invoices@ongc.co.in 1.2 Ten (10) digit PO or Contract number should be clearly mentioned in the invoice. For submitting the invoices through VIMS Portal and Email channel, following must be ensured: 1.2.1 Invoices should be system generated and no hand written invoices shall be allowed. 1.2.2 Invoice should be e-invoice in terms of GST Law or the digitally signed invoice only. 1.2.3 Invoices need to be scanned at a minimum of 300 dpi, preferably in colour. 1.2.4 Invoices should be in PDF format only. 1.2.5 For invoices, file name should be kept as "INVxxxxxxx.pdf" (INV must be prefixed for correct categorization of invoice and differentiation from supporting document). 1.2.6 A regular format must be maintained in which invoices are being submitted in ONGC. 1.2.7 Invoices should be digitally signed with Class - II /III Digital Certificate issued by any licensed CAs. 1.2.8 In case, Email channel is being followed, separate mail should be sent for each invoice. Note: Invoices submitted for payment should be e-invoice in terms of GST Law or the digitally signed invoice only. No physical invoice shall be accepted for payment.

3.4. Bidder shall submit the copy of GSTIN Certificate along with their bid.

3.5. Bidder is required to submit undertakings as per Appendix: BP-1, BP-2 & BP-3 regarding Banning order policy along with the Techno-commercial bid.

3.6. Bidder financial standing:

- a. Bid will not be considered for evaluation where bidder is undergoing an Insolvency Resolution Process under the Insolvency & Bankruptcy Code, 2016 (or any amendments thereof) or, in case of an international bidder, is undergoing any proceedings, for resolution of bankruptcy/Insolvency by concerned court/authority of relevant jurisdiction, as on actual techno-commercial bid opening date.

In case a bidder is undergoing or gets admitted to an Insolvency Resolution Process under the Insolvency & Bankruptcy Code, 2016 (or any amendments thereof) or in case of an international bidder, is undergoing or gets admitted to any proceedings for resolution of bankruptcy/insolvency, or is declared as bankrupt/insolvent by concerned court/authority of relevant jurisdiction, prior to or during Tender evaluation stages, then such bids will be rejected.

- b. Bidder should submit a declaration that bidder is not undergoing an Insolvency Resolution Process under the Insolvency & Bankruptcy Code, 2016 (or any amendments thereof)/proceedings for resolution of bankruptcy/insolvency by concerned court/authority of relevant jurisdiction in respective country. (Format attached in the tender under "Buyer uploaded ATC document")

3.7. Bidder should preferably be a Manufacturer. In case the bidder is not a manufacturer, its bid can also be considered provided such bid is accompanied with tender specific back-up authority letter from the concerned manufacturer, who authorizes them to market their product provided further, in case of award, such an authority letter is valid at the time of bidding and should remain valid during the entire execution period of the order. Required warranty cover of the manufacturer for the product will be provided by such a bidder and an undertaking to this effect shall be provided by the bidder in the techno-commercial bid. Offers without tender specific back-up authority letter from manufacturers will not be considered.

Notwithstanding anything contained above, Either the manufacturer or their authorised distributor/dealer etc. can bid in a tender, but not both. Further, in cases where authorised distributor/dealer etc. participate in a tender on behalf of one

manufacturer, they are not allowed to quote on behalf of another manufacturer along with the first manufacturer for the same item.

3.8. If goods are of foreign origin, then ONGC may ask the bidder to provide the details of price being charged by foreign manufacturer either on Ex-works or FOB or CFR basis, as the case may be. After placement of order, bidder/supplier shall be required to submit copy of Invoice (Customs Invoice) of the foreign manufacturer raised on the Indian supplier on Ex-works / FOB / CFR basis, as the case may be, at the time of shipment or along with documents submitted for payment. The invoice prices of foreign supplier shall be checked by concerned payment authority before making payment.

3.9. The following order of preference for Purchase Preference among MSEs shall apply, subjected to fulfillment of all other provision under the MSE Order:

1st Preference: MSE -SC/ST & Women

2nd Preference: MSE-SC/ST

3rd Preference: MSE-Women

4th Preference: Other MSEs

Note: In case of more than one eligible bidder in any of the categories mentioned above, lowest among those bidders will be eligible for purchase preference.

3.10. Price Breakup of L-1 Bidder: Breakup of prices shall be sought from the bidder quoting the lowest price (i.e. L-1 Bidder) which should indicate separately the Basic Price, Freight and GST Components for clarity of the pricing structure.

3.11. For any tender related queries, bidders may contact the following officer: Ms. Akansha Aggarwal, Designation: Manager (Programming), Phone No. 8332997201, email: aggarwal_akansha@ongc.co.in

3. Buyer Added Bid Specific ATC

Buyer uploaded ATC document [Click here to view the file.](#)

अस्वीकरण/Disclaimer

The Additional Terms and Conditions (ATC) have been incorporated by the Buyer after approval of their Competent Authority. The Buyer is solely responsible for the impact of these clauses on the bidding process, its outcome, and consequences thereof including any restriction arising in the bidding process due to these ATCs and including the modification of technical specifications and / or terms and conditions governing the bid. All representations / grievances pertaining to the ATC clauses shall be raised with the buyer organization directly and not with GeM. If any of the clause(s) is/are incorporated by the Buyer regarding the following, the bid & resultant contract shall be treated as null & void. Further, GeM reserves the right, at its sole discretion, to cancel the bid forthwith, without issuance of any prior notice or intimation :-

1. Publishing Custom / BOQ bids for items for which regular GeM categories are available (unless such Custom / BOQ item is bunched with the major regular product Category Item).
2. Mandating procurement of / from specific Brand / Make / Model / Manufacturer / Dealer except in case of Single Bid / Proprietary Article Certificate (PAC) Buying.
3. Inclusion of disqualification criteria related to suspension of seller / service provider, where such suspension period has already expired.
4. Mandating submission of documents in physical form as a pre-requisite to qualify bidders.
5. Publishing bids on GeM for procurement of works.
6. Procurement of Goods by creating a Service bid on GeM & vice-versa.
7. Seeking sample with bid or approval of samples during bid evaluation process. However, trial / sample, as the case may be, shall be permitted in cases where trial / sample are allowed as per approved and published procurement policy of the Buyers' controlling Ministry / Department / State / Public Sector Enterprises Headquarters. If there is any violation of trial / sample clause with regard to approved policy of the Buyers' Ministry / Department / State / Public Sector Enterprises Headquarters, then this is to be determined and redressed by the concerned Buyer Organisation only.
8. Seeking experience from specific organization / department / institute only or from foreign / export experience.
9. Creating bid for items from incorrect categories.
10. Reference of conditions published on any external site or reference to external documents/clauses.
11. Asking for any Tender fee / Bid Participation fee, as the case may be.
12. Buyer added ATC Clauses which are in contravention of clauses defined in bid detail section, including specifications, EMD Detail, ePBG Detail and MII and MSE Purchase Preference sections of the bid, unless otherwise allowed by the applicable GeM GTC.
13. Any ATC clause in contravention with GeM GTC Clause 4 (xiii) (h) will be invalid. In case of multiple L1 bidders against a service bid, the buyer shall place the Contract by selection of a bidder amongst the L-1 bidders through a Random Algorithm executed by GeM system.
14. In a category based bid, adding additional items, through buyer added, additional scope of work/ additional terms and conditions/or any other document. If buyer needs more items along with the main item, the same must be added through bunching category based items or by bunching custom catalogues or bunching a BoQ with the main category based item, the same must not be done through ATC or Scope of Work.

Further, if any seller has any objection/grievance against these additional clauses or otherwise on any aspect of this bid, they can raise their representation against the same by using the Representation window provided in the bid details field in Seller dashboard after logging in as a seller. Buyer is duty bound to reply to all such representations and would not be allowed to open bids if he fails to reply to such representations.

All GeM Sellers/Service Providers shall ensure full compliance with all applicable labour laws, including the provisions, rules, schemes and guidelines under the four Labour Codes i.e. the Code on Wages, 2019; the Industrial Relations Code, 2020; the Occupational Safety, Health and Working Conditions Code, 2020; and the Code on Social Security, 2020 as and when notified and brought into force by the Government of India.

For all provisions of the Labour Codes that are pending operationalisation through rules, schemes or notifications, the corresponding provisions of the pre-existing labour enactments (such as The Minimum Wages Act, 1948, The Payment of Wages Act, 1936, The Payment of Bonus Act, 1965, The Equal Remuneration Act, 1976, The Payment of Gratuity Act, 1972, etc. and relevant State Rules) shall continue to remain applicable.

The Seller/ Service Providers shall, therefore, be responsible for ensuring compliance under:

- All notified and enforceable provisions of the new Labour Codes as mentioned hereinabove; and
- All operative provisions of the erstwhile Labour Laws until their complete substitution.

All obligations relating to wages, social security, safety, working conditions, industrial relations etc. and any other statutory requirements shall be strictly met by the Seller/ Service Provider. Any non-compliance shall constitute a breach of the contract and shall entitle the Buyer to take appropriate action in accordance with the contract and applicable law.

This Bid is governed by the General Terms and Conditions, conditions stipulated in Bid and Service Level Agreement specific to the Service, as the case may be, as provided in the Marketplace.

However, in case of Service, if any condition specified in General Terms and Conditions is contradicted by the conditions stipulated in Service Level Agreement specific to said Service, then it will over-ride the conditions in the General Terms and Conditions.

[यह बिड सामान्य शर्तों के अंतर्गत भी शासित है /This Bid is also governed by the General Terms and Conditions](#)

जेम की सामान्य शर्तों के खंड 26 के संदर्भ में भारत के साथ भूमि सीमा साझा करने वाले देश के बिडर से खरीद पर प्रतिबंध के संबंध में भारत के साथ भूमि सीमा साझा करने वाले देश का कोई भी बिडर इस निविदा में बिड देने के लिए तभी पात्र होगा जब वह बिड देने वाला सक्षम प्राधिकारी के पास पंजीकृत हो। बिड में भाग लेते समय बिडर को इसका अनुपालन करना होगा और कोई भी गलत घोषणा किए जाने व इसका अनुपालन न करने पर अनुबंध को तत्काल समाप्त करने और कानून के अनुसार आगे की कानूनी कार्रवाई का आधार होगा। In terms of GeM GTC clause 26 regarding Restrictions on procurement from a bidder of a country which shares a land border with India, any bidder from a country which shares a land border with India will be eligible to bid in this tender only if the bidder is registered with the Competent Authority. While participating in bid, Bidder has to undertake compliance of this and any false declaration and non-compliance of this would be a ground for immediate termination of the contract and further legal action in accordance with the laws.

---धन्यवाद/Thank You---